The examination is being carried out on the **following application documents**

Description, Pages

1-244	as originally filed

Claims, Numbers

1-15	filed in electronic form on	30-09-2025

Drawings, Sheets

1/91-91/91	as originally filed

1 Articles 76(1) and 123(2)EPC

The present application is divided from earlier European patent applications: EP23169431 - parent application, and EP19912954 - grand-parent application, both granted and stemming from PCT application WO2020/157559. The present application was originally filed without the claims.The descriptions of the present and earlier applications are substantially identical, with the PCT claims appended as clauses at the ends thereof. Therefore respective basis indicated applies for Article 76(1) EPC and Article 123(2) EPC. The subject matter of the claims presently on file appears to be sufficiently supported by the disclosure of the earlier applications (e.g. see arguments and basis provided by the Applicant with letter of 30-09-2025).

2 Double Patenting (Art. 97(2) and 125 EPC)

The European Patent Office adheres to the general legal principle of prohibition of double patenting (see the Guidelines G-IV, 5-4 and Art. 97(2) in connection with Art. 125 EPC, and further decision G 4/19). Consequently, if the present application proceeds to grant, the scope of each of the granted claims, independent and dependent, should be different from the scope of each of the granted claims, independent and dependent, in the earlier applications mentioned above.

3 Reference is made to the following documents; the numbering will be adhered to in the rest of the procedure.

D1 US 2017/333662 A1 (OVZINSKY GRANT MILTON [AU] ET AL) 23 November 2017 (2017-11-23)

D2 WO 2008/011682 A1 (RESMED LTD [AU]; KWOK PHILIP RODNEY [AU] ET AL.) 31 January 2008 (2008-01-31)

D3 US 2012/132309 A1 (MORRIS DAVID D [US]) 31 May 2012 (2012-05-31)

4 The present application does not meet the requirements of Article 52(1) EPC because the subject-matter of claim 1 does not involve an inventive step within the meaning of Article 56 EPC.

4.1 D1 is considered to be the prior art closest to the subject-matter of claim 1 and discloses (the references in parentheses applying to this document) the following features of claim 1:

A positioning and stabilising structure to provide a force to hold a seal-forming structure in a therapeutically effective position on a patient's head for positive pressure airway treatment of sleep disordered breathing (see figures 6-15), the positioning and stabilising structure comprising:
at least one gas delivery tube (520, 620) to deliver a flow of air to an entrance of the patient's airways via a seal-forming structure (510), each gas delivery tube being constructed and arranged to contact, in use, at least a region of the patient's head superior to an otobasion superior of the patient's head, each gas delivery tube comprising a tube wall defining a hollow interior through which air is able to flow to the seal-forming structure, each gas delivery tube comprising:
a first elongate length of material having opposing first and second edges along its length (see ref. sign 621);
a second elongate length of material having opposing first and second edges along its length (see ref. sign 622); and
~~a third elongate length of material having opposing first and second edges along its length,~~
wherein the first elongate length of material is joined to the second elongate length of material along the first edge of the first elongate length of material and the second edge of the second elongate length of material thereby forming a first seam, and the second elongate length of material is joined to the ~~third~~first

elongate length of material along the first edge of the second elongate length of material and the second edge of the ~~third~~first elongate length of material thereby forming a second seam, to form the tube wall of the gas delivery tube (see figures 12-13), and
wherein an outer layer of the gas delivery tube comprises a textile material and/or a foam material (see §188).

4.2 The subject-matter of claim 1 therefore differs from this known structure in that each gas delivery tube comprises a third elongate length of material having opposing first and second edges along its length, and the second elongate length of material is joined to the third elongate length of material along the first edge of the second elongate length of material and the second edge of the third elongate length of material.

4.3 The problem to be solved by the present invention may therefore be regarded as making a conduit with more than one lumen.

4.4 The solution proposed in claim 1 of the present application cannot be considered to involve an inventive step (Articles 52(1) and 56 EPC) for the following reason.

Document D3 discloses a textile fabric useful in the construction of innerduct structures (see figure 4). D3 discloses exactly a first (44), a second (46) and a third (42) elongate length of material, joined as from present claim 1.

4.5 The skilled person, faced with the technical problem and the disclosure of document D3, would apply the solution of D3 in the structure of D1 and thus arrive at the subject-matter of claim 1, without involving any inventive step (Article 56 EPC).

5 Dependent claims 2-9 and 14-15 (when not depending on claims 10-13) do not appear to contain any additional features which, in combination with the features of any claim to which they refer, meet the requirements of the EPC with respect to inventive step as they contain straightforward possibilities which the skilled person would select, depending on the circumstances, without exercising inventive skill (see relevant passages cited in the search report).

6 The additional features of dependent claim 10 (and consequently of claims 11-13 depending on it) is not disclosed in their present form in any of the documents cited in the search report. A new independent claim may be drafted to include these features, bearing in mind that the features known in combination in D1 should be placed in the preamble of such a claim in accordance with Rule 43(1) EPC.

It is noted that this suggestion is made only for assisting you in deciding how to proceed. It in no way precludes consideration of alternative solutions that you may submit. The responsibility for determining the text of the application (Article 113(2) EPC) and, in particular, for defining the subject-matter for which protection is sought remains with you.

7 The applicant is invited to file an amended set of claims overcoming the above objections.

Any new claim 1 will have to be worded in the two-part form incorporating in its preamble the features disclosed in the closest prior art D1 (Rule 43(1)(b)EPC).

Reference signs should be used throughout the claims (Rule 43(7) EPC).

In order to be able to assess the question of inventive step, the applicant is asked to indicate in the response which technical problem is solved by the characterising features of the claim 1 compared to the closest prior art (Rule 42(1)(c) EPC).

The applicant should adapt the description to the claims on file and amend or delete any statements or expressions which cast doubt on the scope of protection (Guidelines, F-IV, 4.3). Failure to do so could lead to refusal of the application under Article 97(2) EPC in combination with Article 84 EPC. When amending the description, the following should be considered:

- The technical field of the invention (Rule 42(1)(a) EPC; Guidelines F-II, 4.2) must correspond to the amended set of claims;

- The summary of the invention (Rule 42(1)(c) EPC; Guidelines F-II.4.5) must correspond to the amended set of claims. Statements such as "The invention is set out in the appended set of claims" or "The invention is as defined in claim X" may be used instead of repeating the claims verbatim;

- Embodiments which are no longer covered by the claims (such as embodiments relating to method of medical treatment) must be deleted, unless they can reasonably be considered to be useful for highlighting specific aspects of the amended subject-matter. If this is the case, such embodiments must be prominently marked as not being covered by the claimed subject matter (T 1808/06 and Guidelines F-IV, 4.3). General statements such as "the embodiments do not extend the scope of the invention beyond the claimed subject-matter" are not enough to comply with this requirement. General statements not explicitly stating which parts of the description are not covered must not be used. Merely changing the wording "embodiment" to "example", "aspect" or similar is not sufficient;

- The technical features of the independent claims may not be presented as optional in the description. Where they precede a feature of an independent claim, terms such as "for example", “may", “can", "exemplary", "optionally", "preferably" and the like must be removed.

- The expressions like "the disclosure of which is hereby incorporated by reference" should be deleted from the description, on §1, 49, 334, 337, 431, 548, 569, 592, 619, 753, 789, 799, 955 (the Guidelines F-III, 8).

- The vague and imprecise statement in the description on §959 implies that the subject-matter for which protection is sought may be different to that defined by the claims, thereby resulting in a lack of clarity of the claims (Article 84 EPC) when the description is used to interpret the claims (see EPC Guidelines F-IV, 4.4). This statement should therefore be amended to remove this inconsistency.

- The claim-like clauses on page 228-244 of the description should be deleted (see the Guidelines, F-IV, 4.4).

The closest prior art documents should be indicated and discussed in the description (Rule 42(1)(b) EPC).

As regards the features contained in all new claims (independent and dependent), the applicant is asked to indicate in the response on which exactly passages of original application they are based (Rule 137(4) EPC).

The applicant is asked to take into account all of the objections set out above.